



POLICE DEPARTMENT

August 18, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031236
Police Officer Russell Crawford	:	
Tax Registry No. 960400	:	
Manhattan Robbery Squad	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Mallika Kaushal, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
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For the Respondent: Michael Martinez, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he spoke discourteously to Aaron Hardy when, in denying Mr. Hardy's request for a supervisor, Police Officer Crawford stated that his sergeant was "not coming out for this bullshit right now," without police necessity

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

2. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Police Officer Crawford conducted a retaliatory arrest of Aaron Hardy.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Police Officer Russell Crawford, on or about December 3, 2022, at approximately 0130 hours, while assigned to the 44 Precinct and on duty, in the vicinity of the Major Deegan Expressway and the Cross Bronx Expressway, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Police Officer Crawford arrested Aaron Hardy without sufficient legal authority.

P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 30, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Aaron Hardy as a witness. Respondent testified on his own behalf. A stenographic

transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

At approximately 0130 hours on December 3, 2022, Respondent and his partner, Officer Andrew Garcia, pulled over Aaron Hardy to issue him a summons for driving more than 80 m.p.h. on the Major Deegan Expressway. It is alleged that during the ensuing encounter, Respondent made a discourteous comment to Mr. Hardy. It also is charged that Respondent wrongfully, and for retaliatory reasons, arrested Mr. Hardy for disorderly conduct.

The details of what transpired during the encounter were captured in the Body-Worn Camera footage of Respondent and his partner. (CCRB Exs. 1 and 2) In the footage from Respondent's camera, the officers' RMP can be seen coming to a stop behind Mr. Hardy's vehicle on the right side of the highway. There is not a full breakdown lane, so their vehicles are partially in the right lane of traffic, as cars drive past to their left. At the 1:18 mark of the video, Respondent approaches the passenger side of Mr. Hardy's vehicle. He speaks to Mr. Hardy through the rolled-down window, requesting his license and registration. After the documents are provided, Respondent informs Mr. Hardy that he was pulled over for driving over 80 m.p.h. on the Major Deegan. Mr. Hardy states that his brother is a police officer, and asks for Respondent to speak with him on the phone, which Respondent declines to do. Respondent returns to his RMP to prepare the speeding summons.

After he has completed the summons, Respondent, with his partner behind him, returns to the passenger side of the vehicle. At 13:45, Respondent can be seen handing Mr. Hardy the summons. Mr. Hardy asks for a sergeant to come to the scene, but Respondent explains that a

supervisor would not be coming to the highway for a disputed ticket. He also provides Mr. Hardy with the address to the precinct, and tells him, multiple times, that he is welcome to drive there to speak with a supervisor. As Respondent and his partner head back toward their RMP, Mr. Hardy exits his vehicle and walks toward Respondent, again demanding to speak with a sergeant. Respondent first advises him to move over so that he does not get struck by a moving vehicle, then informs Mr. Hardy, several additional times, that he can speak with a supervisor at the precinct.

Despite these repeated explanations, Mr. Hardy continues to demand that a sergeant be called to the scene, and at 15:22, Respondent states, "He's not coming out here for this bullshit right now." He again tells Mr. Hardy that he can go to the precinct and speak with a supervisor there, but Mr. Hardy states that he wants to hear Respondent request the sergeant over the radio. At the 15:44 mark, after Respondent tells him that he will see him back at the precinct, Mr. Hardy steps toward Respondent, so that they are now face-to-face. Respondent asks, "Do you have a problem, sir?" and Mr. Hardy responds, "I do." Respondent orders him to back up, and Mr. Hardy replies that he is not backing up. Respondent asks if he wants to go to the precinct in cuffs, and Mr. Hardy repeats, "I'm not backing up for nothing." After this refusal, Respondent instructs him to get back inside his car, but Mr. Hardy says no. Instead, Mr. Hardy tells Respondent to go ahead and lock him up. Respondent asks for what, and Mr. Hardy repeats that he can go ahead and lock him up. Respondent has Mr. Hardy turn around, and places him in handcuffs. He informs Mr. Hardy that he is being arrested for disorderly conduct, a summonable offense. (CCRB Ex. 1)

Aaron Hardy testified that he was driving to visit a friend when Respondent pulled him over for allegedly speeding. According to Mr. Hardy, he was traveling at about 45-50 m.p.h.,

and was not speeding. Nevertheless, Mr. Hardy immediately pulled over to the right shoulder of the highway and provided his license and registration to Respondent. Mr. Hardy stated that his brother¹ was a police officer, and asked for Respondent to speak with him on the phone, which Respondent declined to do. At trial, Mr. Hardy testified he did not know why he made the request. After Respondent handed him a ticket for speeding, Mr. Hardy repeatedly told Respondent that he wanted to speak with a sergeant. He wished to explain to a sergeant that he was not speeding, and hoped “to clarify” the situation at the scene, rather than back at the precinct where a supervisor might be busy attending to other matters. Respondent told him that a sergeant would not come out to the scene, and started walking back toward his police vehicle. (Tr. 23-26)

Mr. Hardy testified that he felt “frustrated and aggravated,” and he exited his vehicle. He again requested that Respondent call a supervisor to the scene. Respondent declined to call a supervisor, and told Mr. Hardy the address of the precinct if he wanted to pursue the matter. At some point, Respondent stated that a sergeant would not come out “for this bullshit,” though Mr. Hardy could not recall whether that comment was made while he was still inside his vehicle or after he exited. Respondent ordered him to go back inside his car, which Mr. Hardy did not do. As they stood on the side of the road, Respondent arrested Mr. Hardy for disorderly conduct. Mr. Hardy testified that he was not disorderly, and was merely asking for a supervisor. (Tr. 27-30, 51)

According to Mr. Hardy, the disorderly conduct charge was dismissed in court; a certificate of disposition confirmed that the charge was dismissed for legal insufficiency. (CCRB Ex. 4) Mr. Hardy, who has two prior convictions for driving with a suspended license, also

¹ At trial, Mr. Hardy clarified that it actually is his cousin who is a police officer, who is like a brother to him.

appeared in traffic court for the speeding summons. After a trial during which both he and Respondent testified, Mr. Hardy was found guilty of speeding. Mr. Hardy testified that he filed a lawsuit against the NYPD in connection with this incident, which was settled for about \$8,500. Mr. Hardy also acknowledged that at the time he filed his written complaint with the CCRB, he made no mention of Respondent's use of the word "bullshit." (Tr. 31-32, 42-43, 64-66)

Respondent, who at the time of the incident was a Highway Safety Officer, testified that he observed Mr. Hardy drive by at a high rate of speed on the Major Deegan Expressway, where the speed limit was 40 m.p.h. Respondent estimated that Mr. Hardy was traveling at 80 m.p.h., while the reading on his handheld laser device was 81 m.p.h. Respondent drove behind Mr. Hardy's vehicle, activated his lights and sirens, and pulled the car over on the right side of the road. The location where the vehicles stopped was just past an entrance ramp's acceleration lane, and the shoulder was narrow. As such, about one quarter of Mr. Hardy's vehicle, on the driver's side, was positioned in the right lane of traffic. (Tr. 75-79)

After initiating the stop, Respondent approached Mr. Hardy's vehicle on the passenger side, away from traffic, and requested license and registration. Respondent testified that after securing the documents, he informed Mr. Hardy that he was stopped for speeding. Respondent returned with his partner to their vehicle to prepare the speeding summons. After Respondent handed him the completed summons, Mr. Hardy requested that a sergeant come to the scene. Respondent explained that a sergeant would not come there for a disputed ticket. He also told Mr. Hardy that he could drive to the command, where he could speak with a supervisor, and provided the address of the precinct. Respondent testified that the sergeant was likely busy with other matters, and Respondent did not want to unnecessarily prolong their exposure time on the highway, where someone might be struck from behind by another vehicle. (Tr. 80-84)

With the expectation that the interaction was over, Respondent turned back toward his police vehicle. Respondent testified that his intention was to let Mr. Hardy pull out first, and he would follow behind as a buffer so Mr. Hardy's vehicle could safely merge back into traffic. Instead, Mr. Hardy emerged from his car and approached the officers on foot, repeating the same demands about having a sergeant come to the scene. Since Mr. Hardy continued to ignore multiple instructions to drive away from the location and pursue the matter at the precinct, Respondent tried to de-escalate the situation by using stronger language, and told him that a sergeant was "not coming out for this bullshit right now." Respondent described his choice of words as a form of "verbal judo," and he insisted that he was hoping Mr. Hardy would respond by complying with his request. His statement was not intended to be discourteous, nor did Mr. Hardy seem to be offended by his use of the word "bullshit." (Tr. 85-86, 97-98, 101-02)

The attempt to de-escalate did not succeed, as Mr. Hardy remained on the highway and continued to request a supervisor. Respondent, who was now facing Mr. Hardy, could not keep an eye on the traffic coming from behind, and was concerned Mr. Hardy might be struck by a passing car. He urged Mr. Hardy to get back inside his vehicle, but he did not listen. Respondent testified that this was not a normal occurrence: with Mr. Hardy just a few feet from him, agitated and not listening, Respondent was on "full guard," unsure what Mr. Hardy would do next. Respondent also was concerned about the traffic on the highway. (Tr. 86-88)

Respondent ordered Mr. Hardy to back up, but he refused, and told the officer to arrest him. Respondent testified that he answered, "for what," because he could not believe that Mr. Hardy really wanted to go through this over a speeding ticket. When Mr. Hardy repeated that he was not going to back up, Respondent placed him in handcuffs. He charged Mr. Hardy with disorderly conduct, under section 240.20(1) of the Penal Law, as reflected in the summons.

(CCRB Ex. 3) According to Respondent, it was a “dangerous situation,” for Mr. Hardy, the officers, and for the other vehicles driving by that could have crashed, and in his mind Mr. Hardy’s actions constituted disorderly conduct. Respondent never testified in court with respect to this arrest, though he and Mr. Hardy did testify in traffic court regarding the speeding summons, and Mr. Hardy was found guilty of speeding at 80 m.p.h. (Tr. 87-89, 95-96)

Specification 1 charges Respondent with making a discourteous statement to Mr. Hardy during their encounter. It is undisputed that while they were speaking on the side of the road, Respondent stated that his sergeant “is not coming out here for this bullshit right now.” At issue is whether that comment, under the circumstances it was made, constituted discourtesy. I find that it did not.

Preliminarily, I find that contrary to Mr. Hardy’s testimony at trial, he *was* speeding at approximately 80 m.p.h., which is why Respondent pulled him over. I also find that Respondent conducted himself in a responsible, professional manner throughout their encounter. At no point did he insult Mr. Hardy. Notably, in the complaint he filed with the CCRB, Mr. Hardy did not even mention anything about Respondent’s use of the word “bullshit.” Even so, this Court recognizes that under certain circumstances, the use of the word “bullshit” would be gratuitous and constitute discourteous language. It is important, then, to look to the context in which the word was spoken.

In a dangerous situation such as this, where Respondent found himself repeating instructions to no avail, his word choice was reasonable. Specifically, Respondent had just explained to Mr. Hardy, multiple times, that a sergeant would not be coming to the highway to deal with a disputed ticket. He also clearly and respectfully explained that Mr. Hardy could drive to the precinct, where he would have the opportunity to speak with a supervisor about his

concerns. Respondent even repeated the address of the precinct to Mr. Hardy. Nevertheless, Mr. Hardy continued to disregard what Respondent was saying, and repeatedly insisted on having a sergeant come to the scene. Even after Respondent started walking back to his RMP in order to depart from the location, Mr. Hardy chose to emerge from his vehicle and approach Respondent, where he continued to make the same request for a supervisor.

Respondent credibly testified at trial that at that point, as they were dangerously standing at the side of the highway, with cars speeding by, his intention was to de-escalate the situation with the hope of safely concluding the encounter. Toward that end, he used a stronger word, "bullshit," to emphasize to Mr. Hardy that a supervisor would not be coming to the highway for a dispute over a traffic ticket. It was Respondent's hope that Mr. Hardy would cease repeating the same request, and they could then return to their vehicles and safely drive away from the location.

Again, this is not to say that it is acceptable for an officer to use the word "bullshit" in all citizen encounters. However, under these particular circumstances, the use of the word did not rise to the level of discourtesy. Accordingly, I find Respondent Not Guilty of Specification 1.

Specification 2 charges Respondent with making a retaliatory arrest of Mr. Hardy, while Specification 3 alleges that the arrest was conducted without sufficient legal authority. Respondent arrested Mr. Hardy for disorderly conduct for his behavior on the side of the highway during the encounter. Section 240.20(1) of the Penal Law states, "A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous or threatening behavior." Although the disorderly conduct summons was dismissed in criminal court for being legally insufficient, that decision was made without the benefit of a trial on the merits, contrary

to the case before this tribunal, where there was testimony of witnesses, and the surrounding circumstances were considered.

Counsel for the CCRB argues that Mr. Hardy's conduct did not rise to the level of disorderly conduct, since what occurred here was merely an argument between Mr. Hardy and Respondent, and did not involve members of the public. Therefore, Respondent arrested Mr. Hardy without sufficient legal authority (Specification 3). The CCRB also argues that in the alternative, even if the Court were to find that there was a lawful basis for the arrest, Respondent's decision to effect that arrest was still retaliatory, stemming from his frustration with Mr. Hardy, and so Respondent should be found guilty of that charge (Specification 2).

In support of its position, the CCRB emphasizes that no other vehicles pulled over during this incident, there was no crowd gathered in the immediate vicinity, and there was no public inconvenience connected to Mr. Hardy's actions. But that assessment overlooks the dangerous surrounding circumstances created by Mr. Hardy's behavior on the highway at that time. Although both vehicles were pulled over to the right, they were at the end of the merger lane and the shoulder was narrow. As such, the left quarter of their vehicles stuck out into the right lane of traffic, forcing motorists traveling at high speeds to avoid that lane, including those that were just merging onto the highway. The longer the parties remained on the scene, the greater the danger that an accident could happen, either from a motorist being distracted by the events on the right side of the road, or from a vehicle being unable to move out of the right lane in time to avoid a collision.

Mindful of these risks, Respondent repeatedly tried to end the encounter, instructing Mr. Hardy to drive to the precinct if he wanted to pursue the matter. It was Respondent's intention to have Mr. Hardy pull out first, and Respondent would follow right behind in his vehicle to help

facilitate Mr. Hardy's merger back into traffic. However, Mr. Hardy paid no heed to multiple warnings, and continued to disregard what Respondent was telling him.

As Respondent and his partner were returning to their RMP, which should have ended the encounter, Mr. Hardy escalated matters even further when he dangerously emerged from his vehicle, on the driver's side (closer to the highway traffic), and walked toward the officers. Respondent immediately urged him to move to the side for safety reasons. Rather than complying with Respondent's repeated directions to leave the scene, Mr. Hardy became increasingly agitated and belligerent. He continued to insist on having a sergeant come to the scene, while he aggressively moved toward Respondent, positioning himself directly in front of the officer. Respondent ordered him to move back, but Mr. Hardy defiantly refused, and he similarly disobeyed Respondent's order to go back to his vehicle. Again, these interactions were alarmingly occurring in the right lane of a highway, with cars driving by at a high rate of speed.

Under the totality of these specific circumstances, it was reasonable for Respondent to conclude that Mr. Hardy's conduct had reached the point of being a serious safety problem, both for the officers, Mr. Hardy himself, and members of the public driving by on the highway, which in turn provided sufficient legal authority for Respondent to arrest Mr. Hardy. Additionally, the record has failed to establish that the motive for the arrest of Mr. Hardy was retaliatory. Rather, the credible evidence demonstrated that the arrest was born out of a need to address a legitimate and immediate safety concern, created by Mr. Hardy's repeated non-compliance and aggressive, threatening behavior. Accordingly, I find Respondent Not Guilty of Specifications 2 and 3.

APPROVED

DEC 03 2020
Jessie Jesin
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Jeff S. Adler
Jeff S. Adler
Assistant Deputy Commissioner Trial